

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4418**

A bill to amend 1998 PA 386, entitled
"Estates and protected individuals code,"
(MCL 700.1101 to 700.8206) by adding part 6 to article V.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Part 6

SURROGATE DECISION MAKERS FOR HEALTH CARE

Sec. 5601. As used in this part:

(a) "Attending health professional" means that term as defined
in section 5672 of the public health code, 1978 PA 368, MCL
333.5672.

(b) "Health care" means any care, treatment, service, or
procedure to maintain, diagnose, or otherwise affect an
individual's physical or mental health.



1 (c) "Health care decision" means a decision made by an
2 individual or an individual's surrogate regarding the individual's
3 health care, including, but not limited to, any of the following:

4 (i) Selection and discharge of health care providers and a
5 health facility or agency.

6 (ii) Approval or disapproval of diagnostic tests.

7 (iii) Directions to provide or withhold all forms of health care
8 except those that would have required the patient to have expressed
9 the patient's wishes in a clear and convincing manner under the
10 standard of section 5509 or unless the surrogate is acting as a
11 patient surrogate under part 56A of the public health code, 1978 PA
12 368, MCL 333.5651 to 333.5661.

13 (d) "Health care provider" means a person who is licensed or
14 registered or otherwise authorized under article 15 of the public
15 health code, 1978 PA 368, MCL 333.16101 to 333.18838, to provide
16 health care in the ordinary course of business or practice of a
17 health professional.

18 (e) "Health facility or agency" means that term as defined in
19 section 20106 of the public health code, 1978 PA 368, MCL
20 333.20106.

21 (f) "Reasonably available" means readily able to be contacted
22 without undue effort and willing and able to act in a timely manner
23 considering the urgency of the patient's health care needs. An
24 individual is considered reasonably available if available in-
25 person, by telephone, by videoconferencing, or by other means that
26 allow for adequate communication.

27 (g) "Surrogate" means an individual, other than a patient
28 advocate or guardian, authorized under this act to make a health
29 care decision for the patient.



1 Sec. 5602. (1) This part does not limit the authority of a
2 patient surrogate acting under part 56A of the public health code,
3 1978 PA 368, MCL 333.5651 to 333.5661.

4 (2) A surrogate may make a health care decision that a patient
5 who is an adult or an emancipated minor is incapable of making for
6 a patient if both of the following conditions are met:

7 (a) The patient is unable to participate in a health care
8 decision as determined under the same standard as provided in
9 section 5508.

10 (b) The patient does not have a patient advocate designation,
11 out-of-state equivalent of a patient advocate designation, or
12 guardian, or the patient advocate is not reasonably available after
13 documented attempts to reach the patient advocate have yielded no
14 response.

15 (3) A surrogate's authority to make health care decisions is
16 suspended when the patient regains the ability to participate in
17 decisions under the same standard as provided in section 5509(2).

18 (4) An adult or an emancipated minor who is not incapacitated
19 and is admitted to a health care facility may designate an
20 individual to act as a surrogate in writing. A written document
21 designating the patient's identified surrogate decision maker must
22 be placed in the patient's medical record. If the patient is unable
23 to designate a surrogate decision maker in writing, the patient
24 may, by any means of communication, inform an attending health
25 professional of the designation. If the patient communicates to an
26 attending health professional by a means other than in writing, a
27 witness in addition to an attending health professional must be
28 present and a written indication of the designation must be
29 included in the patient's medical record. Designation of a



1 surrogate under this subsection does not preclude the subsequent
2 designation of a patient advocate under section 5506. In the
3 absence of a designation of a surrogate under this subsection,
4 patient advocate designation, or out-of-state equivalent of a
5 patient advocate designation, or if the designee is not reasonably
6 available, any member of the following classes who is reasonably
7 available, in the following order of priority, may act as
8 surrogate:

9 (a) A person previously appointed, qualified, and serving in
10 good standing as guardian for the incapacitated individual in this
11 state or another state.

12 (b) A person named by the individual as attorney in fact in a
13 durable power of attorney.

14 (5) If there is no person appointed, qualified, and serving,
15 or named under subsection (4) (a) or (b) or if none of the persons
16 listed are reasonably available, suitable, and willing to serve,
17 the following in order of priority, may act as surrogate:

18 (a) The incapacitated individual's spouse unless any of the
19 following apply:

20 (i) There is a pending action for divorce, separate
21 maintenance, or annulment.

22 (ii) The spouse has been absent from the incapacitated
23 individual for 1 year or more before making the health care
24 decision.

25 (b) An adult child of the incapacitated individual.

26 (c) A domestic partner with whom the incapacitated individual
27 has resided for more than 12 months before the medical decision.

28 (d) A parent of the incapacitated individual.

29 (e) An adult sibling.



1 (f) An individual with whom the incapacitated individual has
2 resided for more than 12 months before the medical decision and who
3 is not a domestic partner.

4 (g) An adult who has exhibited special care and concern for
5 the patient, who is familiar with the patient's personal values,
6 and who is reasonably available and willing.

7 (6) A person who is the subject of a personal protection order
8 or other court order that directs that person to avoid contact with
9 the patient, or who has a pending criminal action for vulnerable
10 adult abuse or exploitation or domestic violence with the patient
11 is not eligible to act as the surrogate.

12 (7) At any time, a patient may disqualify another individual
13 from acting as surrogate. The disqualification may be communicated
14 in a record signed by the patient or by verbal or nonverbal
15 communication to the individual being disqualified, another
16 individual, or an attending health care provider. Disqualification
17 under this subsection is effective even if made by a patient who
18 has been found to lack capacity. If a disqualification was not made
19 in writing by the patient and signed, the disqualification must
20 have a witness to the disqualification. If the patient disqualifies
21 an individual from serving as a surrogate, a notice must be placed
22 in the patient's medical record.

23 (8) An individual is disqualified from acting as surrogate for
24 the patient if a court finds by a preponderance of the evidence
25 that the potential surrogate poses a danger to the patient.

26 (9) A surrogate must sign an acceptance of authority that must
27 be added to the patient's medical record and include substantially
28 all of the following statements:

29 1. A surrogate shall not exercise powers concerning the



1 patient's care, custody, and medical or mental health treatment
2 that the patient, if the patient were able to participate in the
3 decision, could not have exercised on the patient's own behalf.

4 2. A surrogate does not have authority to make a medical
5 treatment decision to withhold or withdraw treatment that would
6 result in a patient's death. This does not limit the authority of a
7 patient surrogate acting under part 56A of the public health code,
8 1978 PA 368, MCL 333.5651 to 333.5661.

9 3. A surrogate must not receive compensation for the
10 performance of the surrogate's authority, rights, and
11 responsibilities, but a surrogate may be reimbursed for actual and
12 necessary expenses incurred in the performance of the surrogate's
13 authority, rights, and responsibilities.

14 4. A surrogate shall act in accordance with the standards of
15 care applicable to fiduciaries when acting for the patient and
16 shall act consistent with the patient's best interests. The known
17 desires of the patient expressed or evidenced while the patient is
18 able to participate in medical or mental health treatment decisions
19 are presumed to be in the patient's best interests.

20 5. A surrogate may revoke in writing the surrogate's
21 acceptance of the role of surrogate at any time. The revocation
22 must be placed in the patient's medical record.

23 6. If a previously appointed surrogate revokes acceptance as
24 serving as a surrogate, another surrogate may be appointed in
25 accordance with section 5602(4) of the estates and protected
26 individuals code, 1998 PA 386, MCL 700.5602.

27 7. A patient admitted to a health facility or agency has the
28 same rights listed under section 20201 of the public health code,
29 1978 PA 368, MCL 333.20201.



1 (10) A surrogate shall communicate the surrogate's assumption
2 of authority as promptly as practicable to the members of the
3 patient's family as specified in subsection (4) who can be readily
4 contacted.

5 (11) A surrogate shall act in accordance with the standards of
6 care applicable to fiduciaries when acting for the patient and
7 shall act consistent with the patient's best interests. The known
8 treatment preferences of the patient expressed or evidenced while
9 the patient was able to participate in medical or mental health
10 treatment decisions are presumed to be in the patient's best
11 interest.

12 (12) If a surrogate continues to act for more than 7 days
13 after assuming authority, the surrogate must provide written notice
14 to all persons identified in subsections (4) and (5) who can be
15 readily contacted. The notice under this subsection must include,
16 at a minimum, all of the following:

17 (a) The name, address, telephone number, and email address, if
18 available, of the surrogate.

19 (b) The date the surrogate began acting.

20 (c) The current location of the patient.

21 (13) If there is more than 1 reasonably available member of a
22 class having priority, members of the class shall select a single
23 surrogate from the class by majority vote. A health care facility
24 or agency or health care provider is not required to affirmatively
25 seek out all members of a class.

26 (14) If there is a dispute regarding the selection of the
27 surrogate, any person interested in the welfare of the individual
28 may petition the court for an order appointing a temporary
29 guardian. The court shall appoint the individual having the highest



1 priority who is suitable and willing to serve. If selecting between
2 individuals who share the same priority, the court shall consider
3 the individuals' familiarity with the patient's health and values
4 and the individuals' availability.

5 (15) A surrogate acting under this part has the same
6 authority, rights, responsibilities, and limitations applicable to
7 a patient advocate in section 5509(1) other than section 5509(1)(d)
8 and (e).

9 (16) Surrogates and health care providers acting under this
10 part are bound by the same restrictions applicable to a patient
11 advocate in section 5512(2) to (6).

12 (17) A health care decision made by a surrogate for a patient
13 is effective without judicial approval.

14 (18) Unless related to the patient by blood, marriage, or
15 adoption, a surrogate may not be an owner, operator, or employee of
16 a health care facility at which the patient is receiving care or be
17 the patient's attending health professional, unless no other
18 potential surrogate is readily available.

19 (19) An attending health professional may require an
20 individual claiming the right to act as surrogate for a patient to
21 provide a written declaration under penalty of perjury stating
22 facts and circumstances reasonably sufficient to establish the
23 claimed authority.

24 (20) If an individual of a higher priority to the surrogate
25 becomes available and willing to be the surrogate, the individual
26 with the higher priority is considered the surrogate. Documentation
27 of the change in surrogate must be placed in the patient's medical
28 record.

29 (21) A surrogate does not have authority to bind the patient



1 to an arbitration agreement without specific authorization from the
2 patient or a court order.

3 (22) A surrogate shall not move a patient out of state without
4 a court order, unless the patient is a resident of the state to
5 which the patient will be moved.

6 Sec. 5603. (1) Before implementing a health care decision made
7 for a patient by a surrogate, an attending health professional, if
8 possible, must promptly communicate to the patient the decision
9 made and the identity of the person making the decision.

10 (2) An attending health professional who knows of the
11 existence of a patient advocate designation, a revocation of a
12 patient advocate designation, or a designation or disqualification
13 of a surrogate, shall promptly record its existence in the
14 patient's health care record. If the patient advocate designation,
15 revocation of a patient advocate designation, or designation or
16 disqualification of a surrogate is in writing, an attending health
17 professional shall request a copy and, if one is furnished, shall
18 arrange for its maintenance in the health care record.

19 (3) A physician who makes or is informed of a determination
20 that a patient lacks or has recovered capacity, or that another
21 condition exists that affects an individual instruction or the
22 authority of a patient advocate, guardian, or surrogate, shall
23 promptly record the determination in the patient's health care
24 record and communicate the determination to the patient, if
25 possible, and to any person authorized to make health care
26 decisions for the patient.

27 (4) A health care provider or facility or agency providing
28 care to a patient under this part shall comply with the applicable
29 provisions under section 5511(2) to (4).



1 **Sec. 5604. A person specified in a patient advocate**
2 **designation and a person authorized to make health care decisions**
3 **for a patient have the same rights as the patient under this**
4 **section to request, receive, examine, copy, and consent to the**
5 **disclosure of medical or any other health care information.**

6 Enacting section 1. This amendatory act does not take effect
7 unless Senate Bill No. ____ (request no. S01585'25) or House Bill
8 No. 4419 of the 103rd Legislature is enacted into law.